

Smt. Suman Lata v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 20 July 2011 · WRIT - C No. 15738 of 2011 · **Writ dismissed for default; theft-assessment demand left undecided.**

HEADNOTE

Writ challenging a theft-assessment demand for alleged non-compliance with the U.P. Electricity Supply Code, 2005 was dismissed for default after an earlier conditional stay of recovery; the Code challenge was not decided.

FACTUAL SUMMARY

Smt. Suman Lata challenged a Demand Notice dated 28 February 2011 issued on an assessment for alleged electricity theft, alleging non-compliance with mandatory requirements of the U.P. Electricity Supply Code, 2005. The Division Bench adjourned the writ several times for the licensee's counsel to obtain instructions. On 26 April 2011 notice issued pending admission and recovery was stayed subject to a Rs. 50,000 deposit. On 20 July 2011, after the list was revised and none appeared for the petitioner, the writ was dismissed for default.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for default of theft-assessment writ

HOLDING

After notice pending admission and a conditional stay of recovery under the 28 February 2011 theft-assessment demand, the writ alleging non-compliance with mandatory requirements of the U.P. Electricity Supply Code, 2005 was dismissed for default when none appeared for the petitioner on a revised list; the Code challenge was not adjudicated. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE THEFT-ASSESSMENT DEMAND NOTICE DATED 28.2.2011 WAS ISSUED WITHOUT COMPLYING WITH MANDATORY REQUIREMENTS OF THE U.P. ELECTRICITY SUPPLY CODE, 2005.

¶ 4